

**Sixty-ninth Legislative Assembly of North Dakota
In Regular Session Commencing Tuesday, January 7, 2025**

SENATE BILL NO. 2081
(Human Services Committee)
(At the request of the Department of Health and Human Services)

AN ACT to amend and reenact section 50-24.4-29 of the North Dakota Century Code, relating to geropsychiatric facilities.

BE IT ENACTED BY THE LEGISLATIVE ASSEMBLY OF NORTH DAKOTA:

SECTION 1. AMENDMENT. Section 50-24.4-29 of the North Dakota Century Code is amended and reenacted as follows:

50-24.4-29. Geropsychiatric facilities.

The department may select ~~one or more~~ skilled nursing homes ~~facilities~~ within the state to operate a unit that ~~exclusively~~ provides geropsychiatric services. Admission to one of the skilled nursing homes ~~facilities~~ that ~~exclusively~~ provides geropsychiatric services ~~for the purpose of receiving geropsychiatric services~~ may be granted only after the state hospital has performed an evaluation of the individual being admitted which indicates the individual is in need of nursing home geropsychiatric services an individual practicing within the scope of their practice determines the individual meets the criteria for skilled nursing, and needs psychiatric behavioral health services. Admissions from the state hospital will be given first priority for admission to the units. If at any time the department determines that the number of approved geropsychiatric units that provide geropsychiatric services in the state is insufficient to meet the needs, the department may select ~~a geropsychiatric unit~~ additional units based on the experience, qualification, and capacity of the skilled nursing homes ~~facilities~~ that propose to provide geropsychiatric services. ~~The state hospital may not offer geropsychiatric services through a unit set up exclusively to provide those services.~~

President of the Senate

Speaker of the House

Secretary of the Senate

Chief Clerk of the House

This certifies that the within bill originated in the Senate of the Sixty-ninth Legislative Assembly of North Dakota and is known on the records of that body as Senate Bill No. 2081.

Senate Vote: Yeas 47 Nays 0 Absent 0

House Vote: Yeas 83 Nays 1 Absent 10

Secretary of the Senate

Received by the Governor at _____ M. on _____, 2025.

Approved at _____ M. on _____, 2025.

Governor

Filed in this office this _____ day of _____, 2025,

at _____ o'clock _____ M.

Secretary of State